

25STCV19486 25STCV19486

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 25STCV19486 Hearing Date: July 1, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

michael white

;

Plaintiff,

vs.

levy restaurant

;

Defendant.

Case

No.:

25STCV19486

Hearing

Date:

July
1, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

defendant levy premium foodservice limited
partnership's motion for judgment on the pleadings

MOVING PARTY: Defendant Levy Premium
Foodservice Limited Partnership (erroneously sued as Levy Restaurant)

RESPONDING PARTY: Unopposed

Motion for Judgment on the Pleadings

The court
considered the moving papers filed in connection with this motion.

DISCUSSION

Defendant Levy Premium Foodservice Limited Partnership ("Defendant") moves the court pursuant to Code of Civil Procedure section 438, subdivision (c)(1)(B)(i) and (ii) for an order granting judgment on plaintiff Michael White's ("Plaintiff") First Amended Complaint ("FAC") on the grounds that it is too confusing and ambiguous for Defendant and its counsel to respond to.

The Civil Case Cover Sheet indicates causes of action for medical malpractice, business tort/unfair business practice, civil rights, fraud, and wrongful termination and the FAC includes references to charges of "bribery" under Penal Code sections 67 and 641.3, "attempted murder" under Penal Code sections 664 and 187, "Discrimination Penal Code Section 51.03 and Penal Code 13519.4[,] which is labor law section 2306.", "L C 230(e) retaliation" and "Labor Code section 230(b) – wrongful termination."
(FAC, pp. 2-3.)

The court grants Defendant's motion for judgment on the pleadings regarding the discrimination and retaliation causes of action because the FAC does not state facts sufficient to constitute a cause of action against Defendant since Plaintiff failed to allege that he exhausted his administrative remedies prior to filing this action. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii); *Johnson v. City of Loma Linda* (2000) 24 Cal.4th 61, 70 ["Exhaustion of administrative remedies is 'a jurisdictional prerequisite to resort to the courts'"]; *Wills v. Superior Court* (2011) 195 Cal.App.4th 143, 153 ["Before filing a civil action alleging FEHA violations, an employee must exhaust his or her administrative remedies with DFEH. Specifically, the employee must file an administrative complaint with DFEH identifying the conduct alleged to violate FEHA"]; 42 U.S.C.A. § 2000e-5, subd. (b) [providing the EOCC's requirements for filing an administrative complaint].)

The court denies Defendant's motion for judgment on the pleadings regarding the wrongful termination and retaliation causes of action based on the statute of limitations because the FAC on its face does not allege when the wrongful termination or the retaliation occurred and thus the court cannot determine when the statute of limitations began to run. (*Hunt v. County of Shasta* (1990) 225 Cal.App.3d 432, 440 ["A pleading which on its face is barred by the statute of limitations does not state a viable cause of action and is subject to judgment on the pleadings"].) At most the FAC alleges that Plaintiff worked at the Rose Bowl until "they stopped Pizza and Wings to stop having vendors this last year just to Retaliate on me." (FAC, p. 2:14-15.)

The court grants Defendant's motion for judgment on the pleadings regarding the wrongful termination cause of action because the FAC does not state facts sufficient to constitute a cause of action against Defendant since Plaintiff alleges he was terminated in violation of Penal Code section 98.6, which does not exist, and thus, Plaintiff fails to allege that he was terminated in violation of a policy delineated in constitutional or statutory provisions. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii); *Barbee v. Household Automotive Finance Corp.* (2003) 113 Cal.App.4th 525, 533 ["In order to establish a claim of wrongful termination in violation of public policy, Barbee must prove that he was terminated in violation of a policy that is '(1) delineated in either constitutional or statutory provisions; (2) "public" in the sense that it "inures to the benefit of the public" rather than serving merely the interests of the

individual; (3) well established at the time of the discharge; and (4) substantial and fundamental”].)

The court grants the motion for judgment on the pleadings as to the malpractice cause of action because the FAC does not state facts sufficient to constitute a cause of action against Defendant since Plaintiff has not alleged that Defendant is a law firm, provided legal advice, or employs lawyers. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii); Landmark Screens, LLC v. Morgan, Lewis & Bockius, LLP (2010) 183 Cal.App.4th 238, 247–248 [“In California a viable legal malpractice claim requires proof of ‘(1) the duty of the attorney to use such skill, prudence, and diligence as members of his or her profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the breach and the resulting injury; and (4) actual loss or damage resulting from the attorney’s negligence”].)

The court grants the motion for judgment on the pleadings as to the fraud and attempted murder causes of action because the FAC does not state facts sufficient to constitute a cause of action against Defendant since Plaintiff fails to allege any facts that Defendant committed any fraud except for the conclusory allegation that ““They have did the crimes of bribery Penal Code 67 & 641.3 and attempted murder Penal Code 664/187. The fraud of bribery which a fraud” and “I didn’t mention a attempted murder by Levy Restaurant or Levy employees several times. (Penal Code 664/187).”

(FAC, pp. 2:6-8, 3.) (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).)

The court grants the motion for judgment on the pleadings as to the intentional infliction of emotional distress cause of action because the FAC does not state facts sufficient to constitute a cause of action against Defendant since Plaintiff has failed to allege that Defendant’s conduct was extreme and outrageous with the intent of causing, or reckless disregard of the probability of causing, severe emotional distress. (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 1001 [“The elements of the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.... Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community. [Citation.] The defendant must have engaged in conduct

intended to inflict injury or engaged in with the realization that injury will result”] [internal quotations omitted].)

The burden is on the plaintiff “to articulate how it could amend its pleading to render it sufficient.”² (Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.)² To satisfy that burden, a plaintiff “must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.”² (Goodman v.

Kennedy

(1976) 18 Cal.3d 335, 349.)² The court finds that Plaintiff has not met his burden to show how he can amend the FAC to render it sufficient against Defendant. The court therefore grants Defendant's motion for judgment on the pleadings without leave to amend.

ORDER

The court grants defendant Levy Premium Foodservice Limited Partnership's (erroneously sued as Levy Restaurant) motion for judgment on the pleadings without leave to amend.

The court orders that this action is dismissed. (Code Civ. Proc., § 581, subd. (m).)

The court orders that the Case Management Conference set for August 20, 2026, is vacated.

The court orders defendant Levy Premium Foodservice Limited Partnership to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 1, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court